

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL ORTIZ,

Plaintiff,

- against -

THE CITY OF NEW YORK; OFFICER RYESHAUN
PAULINO (Shield No. 19211) of the 41st Precinct;
OFFICER "JOHN DOE" 1-5 of the 41st Precinct; and
OFFICERS "JOHN DOE" 6-10 of the 43rd Precinct;
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Index No.:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
The county in which the
action arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 2, 2020

Yours etc.

Christopher H. Fitzgerald

_____/s/_____
Christopher H. Fitzgerald

Attorney for Plaintiff

MICHAEL ORTIZ

233 Broadway, Suite 2348
New York, NY 10279

212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

OFFICER RYESHAUN PAULINO (SHIELD NO. 19211)
41st Precinct, New York City Police Department
1035 Longwood Avenue
Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
MICHAEL ORTIZ,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; OFFICER RYESHAUN
PAULINO (Shield No. 19211) of the 41st Precinct;
OFFICER "JOHN DOE" 1-5 of the 41st Precinct; and
OFFICERS "JOHN DOE" 6-10 of the 43rd Precinct;
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on December 2, 2018 and August 11, 2019, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Defendants **PAULINO** and **"JOHN DOES" 1-10**.
3. That all conditions and requirements precedent to the commencement of this action have been complied with.
4. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.
5. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for

all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

6. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

STATEMENT OF FACTS

Incident of December 2, 2018 inside the 41st Precinct (2019PI005955)

7. On March 2, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
8. That a hearing was conducted pursuant to General Municipal Law §50(h) on February 18, 2020.
9. That this action is commenced within a year and 90 days from the incident giving rise to the claims in this lawsuit.

10. That on December 2, 2018, Plaintiff **MICHAEL ORTIZ** (hereinafter "Plaintiff") was in police custody at the 41st Precinct of the New York City Police Department, located at 1035 Longwood Avenue, County of the Bronx, City and State of New York.
11. On that date and at that place, Defendants, OFFICER **RYESHAUN PAULINO** (Shield No. 19211) and **OFFICERS "JOHN DOE 1-5"** forcibly ripped off Plaintiff's sweatshirt and pulled his pants down without his consent, and proceeded to forcibly attack Plaintiff.
12. Thereafter, defendant "**OFFICER JOHN DOE 1**" told his cohort to "turn off your body cams" before commencing the physical attack, in which **OFFICER "JOHN DOE 1"** or one of the other officers elbowed Plaintiff in the right eye, causing severe injury, requiring transport of Plaintiff to Lincoln Hospital.
13. This injury is considered to be permanent, and may require further surgical intervention.
14. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the **CITY OF NEW YORK**, its agents, servants and/or employees.

Incident of August 11, 2019 by Officers of the 43rd Precinct
(2019PI030175)

15. On November 11, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that,

thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

16. That a hearing was conducted pursuant to General Municipal Law §50(h) on January 27, 2020.
17. That this action is commenced within a year and 90 days from the incident giving rise to the claims in this lawsuit.
18. That on August 11, 2019, in the vicinity of Virginia Avenue and Ellis Avenue in the County of the Bronx, City and State of New York, Plaintiff was verbally and physically assaulted by an unknown person inside a convenience store.
19. Officers from the 43rd precinct, including defendants “JOHN DOE” 6-10, responded to the scene but proceeded to physically assault and arrest Plaintiff, despite the fact Plaintiff was the victim.
20. Plaintiff was taken to the 43rd Precinct then to Jacobi Hospital to be treated for injuries to, *inter alia*, his right shoulder, left shoulder, head, and lower back.
21. Plaintiff was thereafter taken to Bronx Central Booking, finger printed, and photographed.
22. Plaintiff was charged under Docket No. 2019BX022211 for, *inter alia*, disorderly conduct, obstructing governmental administration, and resisting arrest.
23. Plaintiff’s total time of incarceration before arraignment was approximately 24 hours before he was arraigned and released upon accepting and Adjournment in Contemplation of Dismissal.

24. All charges under Docket No. 2019BX022211 were dismissed and sealed on February 10, 2020.
25. Plaintiff had committed no crime on August 11, 2019.
26. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the **CITY OF NEW YORK**, its agents, servants and/or employees.
27. No acts on the part of the Plaintiff **MICHAEL ORTIZ**, contributed to the occurrences alleged herein in any manner whatsoever.
28. Plaintiff sustained numerous serious and permanent bodily injuries as a result of the incidents of December 2, 2018 and August 11, 2019.
29. Plaintiff further suffered severe anxiety, humiliation, and embarrassment, and apprehension, fear and distrust of the police.
30. Plaintiff further suffered emotional and psychological trauma, violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
31. That by reason of the foregoing, Plaintiff **MICHAEL ORTIZ** has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER New York Law and 42 U.S.C. §1983

(August 11, 2019)

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

33. On August 11, 2019 Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and **CITY OF NEW YORK**.
34. As a result of the aforesaid conduct by defendants JOHN DOE 6-10, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
35. Plaintiff was aware of his confinement.
36. This arrest was not protected by legal privilege, nor were such acts legally justified.
37. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.
38. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW and
ASSAULT & BATTERY UNDER STAT LAW

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
40. On both December 2, 2019 and August 11, 2019, detaining plaintiff, defendants used force.
41. The force used was unreasonable and excessive.

42. Plaintiff was harmed as a result of the use of this force.

43. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

44. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

45. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. On both December 2, 2019 and August 11, 2019, Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff in their negligent application of the use of force.

48. The acts and conduct of the defendants were the direct and proximate cause of injuries to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

49. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING of PAULINO, and JOHN DOES 1-10

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
51. Defendant **CITY OF NEW YORK** negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
52. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, NY
March 2, 2020

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff(s)

MICHAEL ORTIZ

233 Broadway, Suite 2348

New York, NY 10013

212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **MICHAEL ORTIZ**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
March 2, 2020

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff